BY ORDER OF THE COMMANDER
374TH AIRLIFT WING

YOKOTA AIR BASE INSTRUCTION 40-301

23 MAY 2022

Medical Command

EMERGENCY PLACEMENT CARE BOARD (EPCB)

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at www.e-publishing.af.mil for downloading or ordering.

RELEASABILITY: There are no releasability restrictions on this publication.

OPR: 374 MDG/SGOW

Certified by: 374 MDG/CC
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Pages: 8

This instruction implements guidance in accordance with (IAW) DAFI 40-301, *Family Advocacy Program*. It applies to Status of Forces Agreement (SOFA)-status military dependents and civilians stationed at, residing on, or working at Yokota Air Base (YAB), regardless of Service affiliation. This instruction assists the United States Air Force in maintaining safe and secure living conditions, maintaining appropriate interactions with the local community, and establishing the Emergency Placement Care Board (EPCB). The EPCB is a process concerning suspected child abuse, neglect, or welfare risk where the alleged offending individual is a parent or legal guardian and separation of the child may be appropriate. This instruction requires the collection and maintenance of information protected by the Privacy Act of 1974 authorized by Title 10 United States Code, Section 9013, Secretary of the Air Force.The applicable System of Record Notice (SORN) F044 AF SG Q, Family Advocacy Program Record and F033 AF B, Privacy Act Request File is available at: **http://dpclo.defense.gov/Privacy/SORNs.aspx**. This instruction applies to all civilian employees and uniformed members of the Department of Defense and their dependents. It also applies only to members of the Air Force Reserve and Air National Guard on Title 10 or Title 32 orders. All records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) AFI 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS), or any updated statement provided by the AF Records Management office (SAF/CIO A6P). Refer recommended changes and questions about this publication to the Headquarters Air Force, Office of the Surgeon General, using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command.

Chapter 1

GENERAL PROCEDURES

1.1. General. This instruction establishes an Emergency Placement Care Board (EPCB) for the Family Advocacy Program (FAP).

1.1.1. The EPCB is a multidisciplinary team that should be activated when there is evidence of an imminent safety concern related to child welfare that may necessitate separation of the child from one or both parents IAW DAFI 40-301, Attachment 5.

1.1.2. The EPCB is activated at the discretion of the Family Advocacy Officer (FAO) or their designee. Membership includes the FAO, the FAP clinician working with the family, member's Sq/CC, Sq/CCF, SJA, SFS, AFOSI, and representatives from other agencies having legal, investigative, or protective responsibilities, as appropriate. 374 AW/CC or CV will be notified of EPCB activation and may attend at their discretion..

1.2. Scope. The FAO (or their designee) will activate the EPCB immediately upon receipt of an allegation of child abuse, neglect, or other situation where the child's welfare is at risk IAW DAFI 40-301, Attachment 5. The EPCB is specifically targeted for situations where one or both parents are the alleged offender(s) (AO), and separation of the AO from the child may be necessary.

1.3. Purpose. The EPCB will evaluate cases where a child's welfare is deemed to be at risk in order to evaluate and coordinate a plan to manage risk and safety concerns. The FAO, SJA, and MDG treatment provider or pertinent commander (if applicable) will make a recommendation to the EPCB and 374 AW/CC whether separation of the AO from the at-risk child is warranted.

1.4. Objectives.

1.4.1. Review the allegations of child abuse, neglect, or other allegation where a child's welfare is at risk integrating clinical, investigative, or other information from each involved agency.

1.4.2. Determine a safety plan for immediate implementation to ensure the child's safety.

1.4.3. Ensure actions taken are sufficient to manage risk and safety concerns, while minimizing disruption and trauma to involved family members.

1.4.4. Ensure coordinated decision making and case management.

1.4.5. Determine how organizations will proceed in making required notifications, support in the logistics of separating the AO from the child or children at risk, and coordinate an appropriate placement for the child with an on-base family until a permanent solution is created.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. 374 AW/CC will:

2.1.1. Attend the EPCB telephonically once the FAO and SJA have a recommended course of action involving an installation commander decision point. Should the installation commander deem it appropriate, he or she may attend the entire EPCB.

2.1.2. Determine the appropriate course of action based on the information and recommendations from the FAO and SJA

2.1.3. Direct the involuntary separation of the AO from the affected child or children. After consultation with the FAO, SJA, and MDG (if applicable), the installation commander may direct a placement for the child with a family or designated member for up to 48 hours before the situation must be reassessed.

2.2. 374 FAO will:

2.2.1. Appoint a designee to handle EPCB responsibilities should the FAO be unavailable. For the purpose of this instruction, "FAO" refers to the current FAO or their designee.

2.2.2. Activate the EPCB when there is a report that a child's welfare is at risk.

2.2.2.1. Any EPCB agency may request activation of the EPCB by the FAO.

2.2.2.2. In the event there is a disagreement between agencies on whether or not an EPCB is warranted, the FAO will immediately call a Stage 1 EPCB meeting as this is the most appropriate forum in which to resolve this disagreement.

2.2.3. Introduce the incident by identifying any known pertinent information necessary for appropriate management of risk and safety concerns IAW the EPCB process.

2.2.4. Collaborate with EPCB members to develop a coordinated safety plan for immediate implementation.

2.2.5. If applicable, provide 374 AW/CC with a rationale and recommendation regarding whether separation of the AO from the child is necessary and appropriate for the safety of the child/children involved.

2.2.6. Provide background checks for the individual or members of a family selected to provide temporary care to children under this guidance.

2.2.7. Document all EPCB activities in the Family Advocacy System of Records (FASOR).

2.3. 374 AW Staff Judge Advocate (374 AW/JA) will:

2.3.1. Appoint a representative and an alternate to serve as legal advisor at the EPCB.

2.3.2. Provide relevant legal counsel and information at the EPCB, if not otherwise covered by the other agencies.

2.3.3. Notify 374 AW/CC of disagreements between the EPCB agencies.

2.3.4. Recommend a course of action to the EPCB or 374 AW/CC.

2.4. 374th Security Forces Squadron (374 SFS) will:

2.4.1. Provide relevant information at the EPCB, to include prior history of incidents or investigations of the AO, current incidents or investigations of the AO, and other observations, as applicable.

2.4.2. Provide a physical presence during the involuntary separation of the AO(s) from the child to minimize risk of violence.

2.4.3. Provide background checks for all members of any family selected to provide temporary care to children under this guidance.

2.5. Air Force Office of Special Investigations (AFOSI) will:

2.5.1. Provide relevant information at the HRVRT/ECPB, to include prior history of incidents or investigations of the AO, current incidents or investigations of the AO, and other observations, as applicable.

2.5.2. Coordinate notification of a child abuse, neglect, or imminent risk of harm to Japanese Child Protective Services (CPS), according to current procedures.

2.5.3. Provide background checks for the individual or members of a family selected to provide temporary care to children under this guidance.

2.6. Group Commanders, Squadron Commanders, First Sergeants, or equivalent will:

2.6.1. Immediately notify an FAO where there is an allegation or other reasonable suspicion of child neglect, abuse, or other safety concern.

2.6.2. Provide relevant information at the ECPB, to include the status of the AO and context about the family not otherwise covered by other agencies.

2.6.3. Identify a family for temporary placement of any children separated under this guidance and provide information necessary to ensure a background check from FAP and law enforcement agencies is completed prior to placement.

2.6.4. Facilitate the transfer of the children or the AO and temporary placement with an appropriate individual or family where separation is directed by 374 AW/CC.

2.6.5. Facilitate alternate living arrangements for the AO, non-offending-parent, or other displaced family members for the duration of the separation and as required by EPCB safety plan.

2.6.6. Command representatives will provide 374 AW/CC with updates as needed.

2.6.7. Provide at least two hours' notice to all members of the EPCB of the date, time, and location of the separation of the AO from the child.

Chapter 3

ECPB PROCEDURES

3.1. Convening a Board.

3.1.1. The EPCB will be activated IAW **Chapter 1** of this instruction.

3.1.2. The EPCB will consist of two distinct stages:

3.1.2.1. **Stage 1:** An initial meeting of EPCB agencies to review available pertinent information and generate an initial safety plan. In cases where the EPCB concurs that separation is unwarranted, 374 AW/CC will be notified and the EPCB process can be completed pending additional risk or safety information that might necessitate a follow-up meeting.

3.1.2.1.1. The EPCB should consider scheduling a telephonic or in-person follow-up meeting upon conclusion of any initial Stage 1 meeting before disbanding to ensure appropriate implementation and follow-up on any safety planning recommendations.

3.1.2.1.2. Any involved EPCB team member can request a follow-up Stage 1 meeting at any time. The appropriateness of a telephonic or in-person follow-up meeting will be determined by the FAO in consultation with the requesting agency and SJA.

3.1.2.2. **Stage 2:** A follow-up meeting with 374 AW/CC in the event that involuntary separation of the AO from the impacted child or children is warranted due to risk of imminent death, serious bodily harm, or neglect IAW AFI 40-301 Attachment 5.

3.1.2.2.1. For situations where EPCB members disagree on the recommendation to upgrade or not upgrade to a Stage 2 meeting, the SJA will take into consideration all of the information presented and make a final determination.

3.1.3. On-duty hours. The EPCB should be held in the FAP conference room. All attendees should make every effort to be physically present. It is within the discretion of the FAO to allow attendees to call in telephonically. If 374 AW/CC or CV attends, the EPCB will be held in the 374 AW conference room.

3.1.4. Off-duty hours. When an allegation arises during off-duty hours, the FAO will convene the EPCB telephonically when appropriate. If, in consultation with SJA and other appropriate EPCB agencies, the FAO determines an in-person meeting is warranted during off-duty hours, the preferred location for the EPCB meeting will be the Medical Group (MDG) Conference Room or the 374 AW conference room.

3.2. Separation of AO from a Child.

3.2.1. The EPCB will consult DAFI 40-301, Attachment 5, in considering whether separation of affected children from an alleged offender(s) is appropriate and formulating a plan for temporary placement of affected children.

3.2.2. The EPCB should make every effort to place children with a non-offending parent or legal guardian.

3.2.3. In cases where it is impossible to secure placement with a non-offending parent or guardian, the EPCB should make every effort to voluntarily place the child or children with a

family relative, friend, or co-worker with the consent of at least one parent or legal guardian. In cases involving consent of at least one parent or legal guardian, 374 AW/CC is not required to make a decision on whether placement is appropriate.

3.2.4. In cases where a child/children must be removed without the consent of a parent or legal guardian, 374 AW/CC may direct separation for 48 hours and determine an appropriate placement for the child/children IAW DAFI 40-301, Attachment 5. Additionally, in situations where there is consent of a parent or guardian, but they are unable to identify a family or designated member to take the child/children, 374 AW/CC may determine an appropriate placement after consultation with the EPCB.

3.2.5. 374 SFS shall be present at all involuntary separations to minimize the risk of violence and trauma to the family. Patrols need not be an active participant in the separation unless circumstances demand their intervention.

ANDREW J. CAMPBELL, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Status of Forces Agreement, 19 January 1960

AFI 33-322, *Records Management and Information Governance Program*, 28 July 2021

DAFI 40-301, *Family Advocacy Program*, dated 13 November 2020

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFOSI—Air Force Office of Special Investigations

AO—Alleged Offender

CPS—Child Protective Services

EPC—Emergency Placement Care

EPCB—Emergency Placement Care Board

FAO—Family Advocacy Officer

FAP—Family Advocacy Program

FASOR—Family Advocacy System of Records

SFS—Security Forces Squadron

SJA—Staff Judge Advocate

SOFA—Status of Forces Agreement

YAB—Yokota Air Base

Terms

Child Neglect—Act(s) or omission(s) on the part of the child's caregiver that deprives the child of needed age-appropriate care. Types of neglect may include:

1. Lack of supervision: Egregious absence or inattention by child's caregiver. Child's age and level of functioning should be considered in making determination about level of supervision required.

2. *Exposure to physical hazards:* Inattention to child's safety by exposing child to physical dangers or home hazards (including, but not limited to, exposed electrical wiring; broken glass; non-secured, loaded firearms in home; illegal drugs in home; dangerous or unhygienic pets; asking child to perform dangerous activities; driving while intoxicated with child in vehicle; hazardous chemicals; unhygienic living conditions dangerous to health; caregivers known to be abusive or neglectful; domestic violence close enough in proximity to the child to create risk of injury to the child).

3. *Educational neglect*: Knowingly allowing the child to have extended or frequent absences from school, neglecting to enroll the child in appropriate home schooling or public or private education, or preventing the child from attending school for other than justifiable reasons (when education is compulsory by law).

4. *Neglect of health care*: Refusal or failure to provide appropriate, health care including, but not limited to, failure to obtain appropriate professionally indicated medical, mental health, dental services, procedures, or medications, although the caregiver was financially able to do so or was offered other means to do so. It includes withholding of medically indicated treatment for a child with life threatening conditions.

5. *Deprivation of necessities*: The failure to provide age-appropriate nourishment, shelter and clothing to the child. Includes non-organic failure to thrive as determined by a competent medical authority. (FTT is a type of child neglect evidenced by an infant's or young child's failure to adequately grow and develop to or above the third percentile in height and weight when no organic basis for this deviation is found.)

6. *Abandonment*: The caregiver is absent and does not intend to return or is away from the home for more than 24 hours without having arranged for an appropriate surrogate caregiver.

Child Physical Abuse—Non-accidental use of physical force on the part of a child's caregiver. Physical force includes, but is not limited to, hitting with the open hand or slapping, including spanking; dropping; pushing or shoving; grabbing or yanking limbs or body; poking; hair- pulling; scratching; pinching; restraining; squeezing; shaking; throwing; biting; kicking; hitting with fist; hitting with a stick, strap, belt, electrical cord, or other object; scalding or burning; poisoning; stabbing; applying force to throat; strangling or cutting off air supply; holding under water; brandishing or using a weapon.

Egregious—Egregious acts or omissions show striking disregard for child's well-being. As such, they are not merely examples of inadvisable or deficient parenting, but must clearly fall below the lower bounds of normal parenting.

Physical Force—Physical force (e.g., corporal punishment) against a child in American society is permissible and not illegal.

0 steps beyond socially acceptable (permissible): A non-accidental act of physical force against a child (e.g., spank).
1 step beyond socially acceptable (ill advised but not abuse): A non-accidental act of physical force against a child (e.g., spank) that results in an inconsequential injury (e.g., two light, small fingertip sized bruises that do not cause pain).

2 steps beyond socially acceptable (abuse): A non-accidental act of physical force against a child (e.g., spank) that results in:
a. More than inconsequential injury;
b. Any injury to a child under the age of two; or
c. Any injury to the face or head